Constitutional Law I **Professor Baude**
LAWS 40101
Final Exam, Winter 2021

The rules: This is an eight-hour take-home examination. It is open book. Feel free to use any print or electronic materials you like including the internet. But until the exam is over, you may not discuss the exam with any person—in this class or otherwise.

The exam has three questions, worth a total of 100 points.

Each question has a word limit. I won't read additional words. Some of the questions have multiple parts, worth different amounts of points. You can use your judgment as to how to allocate words within each part of a single question. *Remember to watch your word count.*

Advice: Though the exam is open-book, don't get too distracted by materials outside those in the book or the course materials. Some of the exam questions borrow from real-world examples, but they are hypotheticals and I've changed some of the details.

My advice is to sketch an outline to each of the questions before you actually begin to write. If you just dive in, you may get lost halfway through and you may run out of space.

Grading: Grades will be based on your understanding, analysis, and clarity of exposition (so please proofread). Final grades will be calculated in compliance with the law school's grading policies.

If there are additional facts you need to know, please say what they are and how they would affect your analysis. And of course when explaining your answers be sure to explain your reasoning. (Don't assume that I'll know you know the basics; show me!)

Question One. (50 points, 1500 words)

It is 2025, the sun is shining, and both houses of Congress have passed legislation designed to comprehensively address global climate change. The legislation is simple, but broad:

Section One of the statute gives the Environmental Protection Agency the power "to make and enforce any such regulations as are necessary to prevent human activities from changing the global climate." The Environmental Protection Agency is an executive branch agency run by a single officer, who is removable at will by the President.

Section Two of the statute imposes a tax of $51 per ton on the emission of carbon dioxide. This will be paid annually by all businesses and consumers on the basis of their pollution and energy use. The tax will be assessed, collected, and enforced by the Environmental Protection Agency, rather than the Internal Revenue Service. A special amendment to the law, added at the last minute to secure the vote of Senator Joe Manchin, exempts all activities in the state of West Virginia from the tax.

The bill has been presented to the President, who is trying to decide whether to sign it and wants help thinking through the constitutional issues. You are a lawyer for the White House, and the President asks you for a memo answering two questions: First (20 points), is this bill constitutional under current Supreme Court doctrine? Second (30 points), proceeding as a departmentalist, is the bill constitutional under the best understanding of the Constitution that the President should adopt? (The President has not thought carefully about constitutional interpretation, so you must both tell the President how the Constitution should be interpreted, and how that interpretation applies to the statute.)

What do you tell the President?

Question Two. (20 points, 600 words)

A tell-all book co-authored by recent Supreme Court law clerks has revealed a disturbing fact. Two of the Court's "originalist" Justices have been trying to divine the meaning of the Constitution not by reading the Federalist or other ancient texts, but by conducting paranormal seances to speak to the ghost of James Madison. To decide cases, these Justices meet over a crystal ball, read the legal questions to the ghost of Madison, and then transcribe the answers they hear directly into their legal opinions.

Members of Congress are very alarmed, variously concluding that the practice is blasphemous and occult, or delusional, or simply an abdication of judicial duty to interpret the law.

The House Committee on the Judiciary and Senate Committee on the Judiciary both issue subpoenas to the various companies associated with the Justices, calling for any official documents or personal documents relating to witchcraft, ghosts, or James Madison. The Senate Committee states that it is investigating the matter so that it can consider potential court-packing legislation adding two new seats to the Supreme Court to neutralize the influence of the seances. The House Committee states that it is investigating the matter so that it can consider impeaching both Justices for high crimes and misdemeanors.

Both of these are "one-house" subpoenas. The House's subpoena is not presented to the Senate, the Senate's subpoena is not presented to the House, and neither subpoena is presented to the President.

One of the companies subpoenaed by both the House and Senate is Dropbox, a company that holds a great many of the Justices' personal records. The Justices go to federal court and sue to block both the House and Senate subpoenas. You are clerking for the federal district judge hearing the case. She asks you to advise her on the legal issues controlled by Supreme Court doctrine. Are there constitutional objections to either the House or Senate subpoena, and if so, what are they? How should the judge rule?

Question Three. (30 points, 900 words)

Here are the major cases and legal episodes we studied, rearranged into chronological order. What insights do you get from looking at the cases this way, rather than divided up by doctrine or topic? Are there connections you see that we did not focus on much in class?

Decision of 1789 (1789)
Bank Debate (1791)
Post Roads Debate (1791)
Correspondence of the Justices (1793)
Hylton v. US (1796)
Savannah Fire Debate (1796)
Marbury v. Madison (1803)
Stuart v. Laird (1803)
Impeachment of Justice Chase (1804-05)
McCulloch v. Maryland (1819)
Gibbons v. Ogden (1824)
Jackson's Bank Veto (1832)
Dred Scott (1857)
Lincoln Douglas Debate (1859)
Ex Parte Merryman (1861)
The Prize Cases (1862)
The Emancipation Proclamation (1863)
Impeachment of Andrew Johnson (1868)
Pollock (1895)
Hamer v. Dagenhart (1918)
Dillon v. Gloss (1921)
Bailey v. Drexel Furniture (1922)
McGrain v. Daugherty (1927)
Senate Report on Court Packing (1937)
Ex Parte Levitt (1937)
US v. Darby (1941)
Wickard v. Filburn (1942)
Korematsu (1944)
Youngstown (1952)
Heart of Atlanta Motel (1964)
Cooper v. Aaron (1968)
Buckley v. Valeo (1976)

INS v. Chadha (1983)
Garcia v SAMTA (1985)
South Dakota v. Dole (1987)
OLC Memo on Congressional Pay Amendment (1992)
Walter Nixon v. United States (1993)
US v. Lopez (1995)
Clinton v. NY (1998)
Impeachment of Bill Clinton (1998-99)
Gonzales v. Raich (2005)
NFIB v. Sebelius (2012)
Murphy v. NCAA (2018)
Gundy (2019)
Tennessee Wine and Spirits v. Thomas (2019)
First Impeachment of Donald Trump (2019-2020)
Seila Law (2020)
Trump v. Mazars (2020)
Second Impeachment of Donald Trump (2021)

End of Exam.

REMINDER: Did you check your word count for each question?